

EXHIBIT A

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ANA RICE,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CLINTON, Tax ID No. 960376 and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

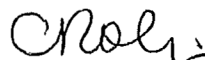
Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 23, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.,
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER CLINTON, Tax ID No. 960376, NYPD SRG3, 397 Coney
Island Avenue, Brooklyn, NY 12218

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ANA RICE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CLINTON, Tax ID No. 960376 and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ANA RICE, by her attorneys, Caitlin Robin & Associates, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 29, 2020, at approximately 8:30 p.m., plaintiff ANA RICE, while lawfully in the vicinity of 620 Atlantic Avenue, in Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to an assault, battery, and use of excessive force by the defendant Officers, when they slammed her to the ground and dragged her, causing her to suffer physical injuries. Plaintiff was then unlawfully imprisoned at the One Police Plaza in Manhattan for approximately 4 hours until plaintiff was issued a Desk Appearance Ticket. Plaintiff was denied the right to due process and a fair trial until the criminal charges against Plaintiff were dismissed and sealed on or about September 25, 2020. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ANA RICE is a resident of the state of New York.
3. NYPD POLICE OFFICER CLINTON, Tax ID No. 960376, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER CLINTON, Tax ID No. 960376, was at all times relevant herein, assigned to the NYPD SRG3 Unit.
5. NYPD POLICE OFFICER CLINTON, Tax ID No. 960376, is being sued in his individual and official capacity.
6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John Does #1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
11. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on October 16, 2020.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On May 29, 2020, at approximately 8:30 P.M., Plaintiff was lawfully present in the vicinity of the Barclays Center, at the corner of Flatbush Avenue and 5th Avenue, in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

16. Plaintiff was lawfully attending a peaceful protest at the Barclays Center in Brooklyn, New York.

17. Plaintiff was standing in an area where there were no police barricades or police vehicles parked.

18. The Defendant Police Officers began to pepper spray the entire crowd.

19. Plaintiff was standing on the sidewalk, chanting, "Say his name."

20. Defendants grabbed Plaintiff, pulled her into the street, and slammed her body against the pavement.

21. Plaintiff was then pinned to the ground by five police officers and her hands were zip cuffed behind her back.

22. Plaintiff did not resist or physically retaliate against the police officers while being pinned to the ground and zip cuffed.

23. Police officers then proceeded to drag the Plaintiff down the street for approximately 2-3 minutes while her hands were zip cuffed.

24. At no time did any of the officers tell the Plaintiff why she was being arrested.

25. Plaintiff was then loaded onto a city bus with a number of other protestors.

26. While on the bus, a police officer searched the Plaintiff's bag and took her information.

27. No contraband was found on Plaintiff's person.

28. The driver of the city bus then refused to transport any of the arrestees to the detention cite.

29. Plaintiff was then loaded on to another bus and was transported to One Police Plaza in Manhattan.

30. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

31. After being transported to One Police Plaza, the Plaintiff was confined to a holding cell for approximated two hours.

32. Upon being released from police custody, the Plaintiff was issued a Criminal Court Appearance Ticket with a return date of September 25, 2020, charging her with Disorderly Conduct (*PL* § 240.20[6]).

33. Plaintiff was later notified by mail that the criminal charges against her were dropped prior to the return date of September 25, 2020.

34. The Kings County District Attorney's office declined to prosecute Plaintiff's case because they determined that no crime occurred.

35. As a result of being forcefully thrown to the ground, pinned down, and dragged down the street by police officers, the Plaintiff sustained multiple contusions and scrapes to her body.

36. Plaintiff did not seek medical treatment for her injuries because of the Covid-19 Pandemic.

37. Plaintiff missed two weeks of work due to physical pain caused by her injuries.

38. Some of the defendant police officer observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting, imprisoning, and denying Plaintiff the right to due process and a fair trial.

39. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's First Amendment Rights

40. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The illegal block of demonstration employed by defendants herein terminated Plaintiff's right to peacefully assemble and protest through means intentionally applied.

42. The conduct of defendants in stopping Plaintiff from peacefully protesting was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

43. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and of the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of new York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment

49. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

57. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

58. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Unlawful Search

61. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

63. Defendants lacked probable cause to search Plaintiff.

64. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

68. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein

69. Defendants, individually and collectively, wrongfully charged the Plaintiff with Disorderly Conduct (*PL § 240.20[6]*).

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligence

73. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to Plaintiff.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

76. All of the foregoing occurred without any fault or provocation by Plaintiff.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

80. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The use of excessive force by defendants by, amongst other things, by pushing her to the ground, pinning her to the ground, zip cuffing her, and dragging her down the street

constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

82. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Assault

83. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

85. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Battery

89. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile

and/or offensive manner by pushing her to the ground, pinning her to the ground, zip cuffing her, and dragging her down the street, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

91. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution

95. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

97. Defendants commenced and continued a criminal proceeding against Plaintiff.

98. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

99. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

100. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

101. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

104. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, ANA RICE. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

106. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

107. As a direct and proximate result of such acts, defendants deprived Plaintiff of hER rights under the laws of the State of New York.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

111. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants,

individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

113. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene

114. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein.

117. As a result of the foregoing, Plaintiff's liberty was restricted, She was put in fear of his safety, and She was humiliated and subject to other physical constraints.

118. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

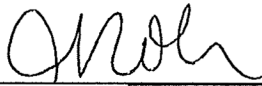
JURY DEMAND

122. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ANA RICE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 23, 2020

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER CLINTON, Tax ID No. 960376, NYPD SRG3, 397 Coney
Island Avenue, Brooklyn, NY 12218

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 23, 2020



CAITLIN ROBIN

FILED: KINGS COUNTY CLERK 04/30/2021 02:16 PM

FILED: KINGS COUNTY CLERK 10/23/2020 01:07 PM

NYSCEF DOC. NO. 1

INDEX NO. 520648/2020

INDEX NO. 520648/2020

RECEIVED NYSCEF: 04/30/2021

RECEIVED NYSCEF: 10/23/2020